



MEMORANDUM OF UNDERSTANDING

C1 CDL Training Program

Elevate for Humanity Career & Technical Institute · 8888 Keystone Crossing, Suite 1300, Indianapolis, IN 46240

This Memorandum of Understanding ("MOU") is entered into between **Elevate for Humanity Career & Technical Institute** ("Elevate") and **[Provider Legal Name]** ("Training Provider").

I. Purpose of Agreement

This MOU outlines the goals, objectives, structure, costs, and expectations of the C1 CDL Training Program. The intent is to clearly define the responsibilities of the training provider, the student, and the student's employer, agency, or sponsor in pursuit of either a Class A or Class B Commercial Driver's License (CDL).

II. Program Goals & Objectives

1. Primary Objective — Class A CDL

To provide students with the knowledge, skills, and hands-on driving experience required to successfully obtain a Class A CDL and begin a career as a professional commercial driver.

2. Primary Objective — Class B CDL

To equip students with the competencies necessary to obtain a Class B CDL and enter the workforce as a qualified commercial vehicle operator.

3. Overall Program Goals

- Deliver high-quality classroom, range, and road instruction in compliance with federal and state CDL standards
- Prepare each student for the CDL skills test
- Support students through employment preparation and job placement assistance

III. Program Costs

1. Class A CDL Training Program

Cash Price	\$4,995.00
Includes: Classroom instruction (online or in-person), behind-the-wheel range training, road training	
Does Not Include: State licensing and CDL issuance fees	

2. Class B CDL Training Program

Cash Price	\$3,495.00
Includes: Classroom instruction (online or in-person), behind-the-wheel range training, road training	
Does Not Include: State licensing and CDL issuance fees	

IV. Program Format & Structure

1. Classroom Training — Class A & Class B

- Duration: One week
- Delivery: Online or in-person
- Curriculum covers required FMCSA ELDT theory material, safety, regulations, and foundational knowledge

2. Behind-the-Wheel, Range & Road Training

- Class A CDL: Three weeks of range and road instruction, followed by a CDL skills test

- Class B CDL: One week of range and road instruction, followed by a CDL skills test

V. Attendance & Conduct Expectations

1. Attendance Requirement

- Students may have no more than two (2) absences during the program
- Exceeding the maximum absence limit may result in dismissal from the program

2. Timeliness & Tardiness

- Training hours: Monday–Friday, 7:00 a.m. – 4:00 p.m.
- Includes one-hour lunch and two 15-minute breaks
- Students must arrive on time each day; excessive tardiness may result in removal

Note: Transportation to and from CDL training each day must be provided by the student, employer, or agency funding the training.

3. Professional Conduct

Students must comply with all facility rules, safety guidelines, and instructor direction at all times.

VI. Job Placement Support

1. Job Placement Coordination

Each student will be assigned a Job Placement Coordinator who will provide guidance on employment opportunities and carrier partnerships.

2. Career Preparation

Students will be introduced to job opportunities beginning on day one. Representatives from partner carriers will regularly present to classes throughout training.

VII. Drop & Dismissal Policy

A student may be dismissed for any of the following:

1. Failure to meet attendance or timeliness requirements
2. Insufficient progress or inability to meet skill requirements
3. Failure or refusal of required drug screening
4. Violation of safety rules or conduct standards, as determined by program leadership

VIII. Participant Ownership & Non-Solicitation

All participants referred to the Training Provider remain enrolled students of Elevate for Humanity. The Training Provider may not bypass, independently solicit, or retain participants outside the terms of this agreement. Any attempt to redirect participants to a competing program or circumvent Elevate's enrollment and funding processes constitutes a material breach of this MOU.

IX. Responsibilities

Elevate for Humanity

- Participant recruitment and enrollment
- Program administration and coordination
- Compliance reporting to funding agencies

Training Provider

- Deliver all CDL training: classroom, range, and road instruction
- Provide qualified CDL instructors holding applicable federal and Indiana state licenses
- Supply all vehicles, equipment, and materials necessary for training
- Prepare students for and administer CDL skills testing

- Provide job placement assistance and employment support
- Track and report student attendance, training hours, and milestone completions to Elevate weekly
- Maintain a safe, FMCSA-compliant training environment at all times
- Notify Elevate within 48 hours of any safety incident, withdrawal, or attendance risk
- Ensure all training aligns with FMCSA ELDT regulations and applicable Indiana CDL standards
- Maintain audit-ready records for all WIOA, FSSA, and funding requirements

X. Compensation & Referral

Elevate receives \$500.00 per enrolled participant as a program administration and referral fee. The Training Provider invoices Elevate for the agreed training cost per participant.

X-A. Non-Disclosure Agreement

Each party acknowledges that in the course of this partnership they may receive or have access to confidential and proprietary information belonging to the other party, including but not limited to student records and PII, curriculum content, business strategies, pricing structures, funding relationships, and vendor contracts.

Both parties agree to:

- Hold all confidential information in strict confidence and not disclose it to any third party without prior written consent
- Use confidential information solely for the purpose of fulfilling obligations under this MOU
- Limit access to employees or contractors who have a need to know and are bound by equivalent confidentiality obligations
- Promptly notify the other party of any unauthorized disclosure or suspected breach
- Return or destroy all confidential materials upon termination of this MOU

These obligations survive termination for three (3) years.

X-B. Non-Compete Agreement

In consideration of the partnership established under this MOU and access to Elevate's proprietary curriculum, student pipeline, and funding relationships, the Training Provider agrees to the following restrictions during the term of this MOU and for two (2) years following its termination:

- No independent program delivery: Training Provider shall not independently offer, market, or deliver any CDL training program that directly competes with the program described in this MOU using curriculum, materials, or methods derived from Elevate's proprietary content
- No solicitation of Elevate's funding partners: Training Provider shall not directly solicit WorkOne, DOL, or any other funding agency introduced through this partnership for the purpose of independently funding a competing training program
- No solicitation of Elevate's students: Training Provider shall not directly recruit or solicit students enrolled in Elevate programs to enroll in a competing program
- No solicitation of Elevate's staff: Training Provider shall not solicit, recruit, or hire any Elevate employee, contractor, or instructor during the term of this MOU and for one (1) year following termination

XI. Tuition Breakdown Requirement

Prior to enrollment of any participant, the Training Provider must submit a complete itemized tuition breakdown to Elevate for review and approval. The breakdown must include a line-item cost for each of the following:

- Tuition / instruction fees
- Behind-the-wheel and range training hours (cost per hour or flat rate)
- Road training hours (cost per hour or flat rate)
- CDL skills test fee
- Equipment and materials
- Administrative fees (if any)

No fees may be added after the breakdown is approved. Any cost not disclosed in the approved breakdown is not payable under this agreement. Elevate reserves the right to reject or renegotiate any line item before approving enrollment.

XII. Reporting & Payout Process

Reporting Requirements

- Daily attendance records must be maintained for every training session
- Weekly progress reports must be submitted to Elevate every Friday by 5:00 p.m.
- Reports must include: student name, days attended, training phase completed, and any concerns
- Training Provider must alert Elevate within 48 hours of any attendance risk, withdrawal, or performance concern
- Failure to submit required reports on time will delay invoice processing until all records are received and verified

Payout Process

- Payment 1 — 50%: Invoiced after Elevate confirms verified student start and a valid funding voucher has been issued
- Payment 2 — 50%: Invoiced after Elevate confirms program completion with supporting documentation (final attendance record, skills test result, completion certificate)
 - All invoices must be submitted to Elevate with required documentation attached
 - Elevate will process payment within 10 business days of receiving funds from the funding source
 - Elevate is not liable for delays caused by WorkOne, DOL, or any other funding agency

XIII. Refund Policy

Payments are tied to verified student participation. The following schedule governs all refund and payment obligations:

STUDENT STATUS	PAYMENT OBLIGATION
No-show / never started	No payment issued to Provider
0–25% completion	Prorated — based on days attended
25–75% completion	Prorated — based on days attended
75%+ completion	Full payment if documented

If Elevate has already paid the Training Provider and a student subsequently withdraws or is dismissed, the Training Provider must refund the overpaid amount to Elevate within 10 business days of notification. Failure to refund within this window constitutes a material breach of this MOU.

XIV. Compliance

The Training Provider must comply with WIOA, FSSA, FMCSA ELDT regulations, and all applicable funding source requirements. All records must be audit-ready. The Training Provider operates under Elevate's compliance system; Elevate's rules take precedence. The Training Provider is liable for any compliance failures attributable to its training operations.

XV. Audit Rights

Elevate may audit the Training Provider's records, attendance documentation, training logs, and performance data at any time with reasonable notice. The Training Provider agrees to cooperate fully with any audit request.

XVI. Invoicing

All invoices must include supporting documentation (attendance records, completion evidence, itemized costs) and align with funding approvals on file. Invoices without required documentation will not be processed until complete.

XVII. Termination

Either party may terminate with 30 days written notice. Elevate may terminate immediately upon material breach, including non-compliance with funding requirements, failure to report, solicitation of Elevate's participants, or safety violations. Termination does not affect obligations for students already enrolled.

XVIII. Independent Contractors

Nothing in this MOU creates an employment relationship, joint venture, partnership, or agency between Elevate and the Training Provider. Each party is solely responsible for its own employees, taxes, insurance, and liabilities.

XIX. Entire Agreement

This MOU constitutes the entire agreement between the parties with respect to the C1 CDL Training Program and supersedes all prior discussions, representations, or agreements. Any modification must be made in writing and signed

by both parties.

XX. Agreement & Acknowledgement

By participating in this program, the student acknowledges and agrees to the terms, expectations, and responsibilities outlined in this MOU.

Companies, employers, agencies, and funding partners entering into this MOU alongside the student confirm that the individual enrolling has demonstrated a responsibility and willingness to uphold the requirements outlined in this document. By entering into this agreement, they are also assuming financial responsibility on behalf of the student receiving instruction and training.

C1 TRUCK DRIVER TRAINING

ELEVATE FOR HUMANITY

Authorized Signature & Date

Elizabeth Greene, Founder & CEO